

24STCV10313 24STCV10313

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Case Number: 24STCV10313 Hearing Date: July 30, 2026 Dept: 408

1.

Plaintiff Melissa

Serna's Motion for Leave to File a First Amended

Complaint is GRANTED.

2.

Defendant

FM Radiology Inc.'s Motion for Sanctions is DENIED.

I.

BACKGROUND

On April 24, 2024, Plaintiff Melissa Serna ("Plaintiff") filed a complaint against Defendants Dr. Massoud Siahkalroudi Amini, M.D. ("Amini") and Dr. Moosa Heikali, M.D. ("Heikali", collectively "Defendants") alleging a single cause of action for sexual harassment.

On August 29, 2024, pursuant to Plaintiff's request, default was entered against Heikali.

On November 22, 2024, pursuant to Plaintiff's request, default was entered against Amini.

On March 27, 2025, Plaintiff filed an Amendment to the Complaint naming Doe 1 as Farhood Saremi ("Saremi").

On April 1, 2025, pursuant to Plaintiff's request, Does 2 to 10 were dismissed without prejudice and with the court

retaining jurisdiction.

On April 3, 2025, the court granted Heikali's Motion to Set Aside/Vacate Entry of Default.

On April 10, 2025, Heikali filed an answer to the Plaintiff's complaint.

On May 21, 2025, Plaintiff filed Amendments to the Complaint naming Does 2 and 3 as California Radiology Management Inc. ("CRM") and FM Radiology Inc. ("FM"), respectively.

On May 27, 2026, Plaintiff filed this Motion for Leave to File First Amended Complaint. On July 27, 2026, Heikali filed an opposition. As of July 27, 2026, no reply has been filed.

On May 27, 2026, FM filed this Motion for Sanctions pursuant to Code of Civil Procedure section 128.7 as to Plaintiff. On July 24, 2026, Plaintiff filed an opposition. As of July 27, 2026, no reply has been filed.

II.

MOTION

FOR LEAVE TO AMEND

A.

Legal Standard

Under Code of Civil Procedure section 473(a)(1), "[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." (Code Civ. Proc., § 473, subd. (a)(1).) Amendment may be allowed at any time before or after commencement of trial. (Code Civ. Proc., § 576.) "[T]he court's discretion will usually be exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428 [internal citations omitted].) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend[.]" (Morgan v. Sup. Ct. (1959) 172 Cal.App.2d 527, 530.) Prejudice includes "delay in trial, loss of

critical evidence, or added costs of preparation.” (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.)

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments. (Cal. Rules of Court, Rule 3.1324, subd. (a).) The motion must also state what allegations are proposed to be deleted or added, by page, paragraph, and line number. (Cal. Rules of Court, Rule 3.1324, subd. (a).) Finally, a separate supporting declaration specifying the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reason the request for amendment was not made earlier must also accompany the motion. (Cal. Rules of Court, Rule 3.1324, subd. (b).)

B.

Discussion

Plaintiff seeks leave to file a first amended complaint to assert additional causes of action for failure to prevent harassment and retaliation, wrongful termination/constructive discharge in violation of public policy, whistleblower retaliation, assault, battery, sexual battery, intentional infliction of emotional distress, negligence/negligent infliction of emotional distress, violation of Civil Code section 52.1, and unfair competition arising from the same facts alleged. (Motion, at p. 4.) Plaintiff also seeks to include additional allegations regarding FEHA exhaustion and clarify certain allegations. (Ibid.) Plaintiff notes that no trial date will be disturbed by this amendment and the proposed amendment will not prejudice Defendants. (Ibid.)

The court finds that Plaintiff complies with the requirements of Rule 3.1324 by providing a copy of the proposed first amended complaint, identifying the changes to be made, and a supporting declaration stating why the amendment is necessary. (Motion, at pp. 1-6; Cohan Decl., ¶¶ 2-6.) The court also finds that any prejudice to Defendants would be minimal as no trial date has been set allowing ample time to contest the pleadings.[1]

Accordingly, the motion is granted.

III.

MOTION

FOR SANCTIONS

A.

Legal

Standard

An attorney or unrepresented party who presents a motion to the court makes an implied certification as to its legal and factual merit, which is subject to sanctions for violation of this certification under Code of Civil Procedure section 128.7. (Murphy v. Yale Materials Handling Corp. (1997) 54 Cal.App.4th 619, 623.) The court may impose sanctions for conduct that violates any one of the requirements set forth in Code of Civil Procedure section 128.7(b). (Eichenbaum v. Alon (2003) 106 Cal.App.4th 967, 976.) Only "an attorney or unrepresented party may be sanctioned" under the statute. (In re Marriage of Reese & Guy (1999) 73 Cal.App.4th 1214, 1221.) Code of Civil Procedure section 128.7(b) provides:

"(b) By presenting to the court, whether by signing, filing, submitting, or later advocating, a pleading, petition, written notice of motion, or other similar paper, an attorney or unrepresented party is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances, all of the following conditions are met:

(1) It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.

(2) The claims, defenses, and other legal contentions therein are warranted by existing law or by a non-frivolous argument for the extension, modification, or reversal of existing law or the establishment of new law.

(3) The allegations and other factual contentions

have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

(4) The denials of factual contentions are warranted on the evidence or, if specifically so identified, are reasonably based on a lack of information or belief.”

(Code Civ. Proc., § 128.7, subd. (b).)

“Under section 128.7, a court may impose sanctions if it concludes a pleading was filed for an improper purpose or was indisputably without merit, either legally or factually. [Citation.]” (Bucur v. Ahmad (2016) 244 Cal.App.4th 175, 189.) “A claim is factually frivolous if it is ‘not well grounded in fact’ and is legally frivolous if it is ‘not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law.’ [Citation.] In either case, to obtain sanctions, the moving party must show the party’s conduct in asserting the claim was objectively unreasonable. [Citation.] A claim is objectively unreasonable if ‘any reasonable attorney would agree that [it] is totally and completely without merit.’ [Citations.]” (Ibid.) No showing of bad faith is required. (In re Marriage of Reese & Guy, supra, 73 Cal.App.4th at 1221.)

“The California Legislature essentially sought to replicate rule 11 [of the Federal Rules of Civil Procedure] when it enacted section 128.7.” (Musaelian v. Adams (2009) 45 Cal.4th 512, 518, fn. 2.) As a result, federal case law construing rule 11 is persuasive authority on the meaning of Code of Civil Procedure section 128.7. (Guillemin v. Stein (2002) 104 Cal.App.4th 156, 167.) Under rule 11, even though an action may not be frivolous when it is filed, it may become so if later-acquired evidence refutes the findings of a prefiling investigation and the attorney continues to file papers supporting the client’s claims. (Childs v. State Farm Mutual Automobile Insurance Company (5th Cir. 1994) 29 F.3d 1018, 1024-1026.) As a result, a plaintiff’s attorney cannot “just cling tenaciously to the investigation he had done at the outset of the litigation and bury his head in the sand.” (Id., at 1025.)

In addition, Code of Civil Procedure section 128.7 “contains a safe harbor provision. It requires the party seeking

sanctions to serve on the opposing party, without filing or presenting it to the court, a notice of motion specifically describing the sanctionable conduct. Service of the motion initiates a 21-day 'hold' or 'safe harbor' period. [Citations] During this time, the offending document may be corrected or withdrawn without penalty. If that occurs, the motion for sanctions "shall not" be filed. [Citations] By mandating a 21-day safe harbor period to allow correction or withdrawal of an offending document, section 128.7 is designed to be remedial, not punitive. [Citation]" (Li v. Majestic Industry Hills, LLC (2009) 177 Cal.App.4th 585, 590-591 [emphasis added].)

B.

Discussion

FM seeks sanctions of \$3,510.00 against Plaintiff and Plaintiff's counsel for refusing to dismiss FM despite being provided with sworn testimony and documentary evidence establishing that it has no connection to the allegations in this case. (Motion, at p. 3.) FM argues that Plaintiff's counsel did not conduct a reasonable inquiry before naming FM or Saremi as defendants, Plaintiff's counsel continued to maintain the claims after being presented with conclusive evidence that FM has no involvement in this case, and Plaintiff's counsel's continued prosecution of these claims is objectively unreasonable and has caused unnecessary expense. (Id., at pp. 8-10.)

In opposition, Plaintiff contends that there is an objectively reasonable factual and legal basis to identify FM as a Doe defendant as Plaintiff declares that she worked in a medical office involving Amini and Heikali, that she personally experienced the alleged harassment, and that she personally observed the FM Radiology and/or F&M Radiology name on office documents and workplace records. (Opp., at p. 5-7; Cohan Decl., ¶¶ 2-11.)[2]

The court finds that a dispute regarding FM's involvement in this action are insufficient grounds to impose sanctions under Section 128.7. Based on the information provided, FM fails to demonstrate that Plaintiff filed her pleadings for an improper purpose or is indisputably without merit. The court also finds that this motion is improper to challenge Plaintiff's pleadings or to dispose FM as a party under these circumstances.

Accordingly, the motion is denied.

IV.

CONCLUSION

1.

Plaintiff Melissa

Serna's Motion for Leave to File a First Amended

Complaint is GRANTED.

2.

Defendant

FM Radiology Inc.'s Motion for Sanctions is DENIED.

[1] The

court notes that, in opposition, Heikali argues that Plaintiff improperly served Heikali with notice of the motion warranting denial. The court will inquire regarding the notice issue at the hearing. However, the court is inclined to grant the motion despite any notice issues due to the policy favoring amendment.

[2] Plaintiff's

Request for Judicial Notice is granted. "A court may properly take judicial notice of its own records. (Evid. Code, § 452, subd. (e).)" (Garcia v. Sterling (1985) 176 Cal.App.3d 17, 21.)